

its terms the petitioner Nixon paid the respondent Fitzgerald a sum of \$142,000. In consideration, Fitzgerald agreed to accept liquidated damages of \$28,000 in the event of a ruling by this Court that petitioner was not entitled to absolute immunity. In case of a decision upholding petitioner's immunity claim, no further payments would be made.

The limited agreement between the parties left both petitioner and respondent with a considerable financial stake in the resolution of the question presented in this Court. As we recently concluded in a case involving a similar contract: "Given respondents' continued active pursuit of monetary relief, this case remains 'definite and concrete, touching the legal relations of parties having adverse legal interests.'" *Havens Realty Corp. v. Coleman*, 455 U. S. 363, 371 (1982), quoting *Aetna Life Ins. Co. v. Haworth*, 300 U. S. 227, 240-241 (1937).

III

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This Court consistently has recognized that government officials are entitled to some form of immunity from suits for civil damages. In *Spalding v. Vilas*, 161 U. S. 483 (1896), the Court considered the immunity available to the Postmaster General in a suit for damages based upon his official acts. Drawing upon principles of immunity developed in English cases at common law, the Court concluded that "[t]he interests of the people" required a grant of absolute immunity to public officers. *Id.*, at 498. In the absence of immunity, the Court reasoned, executive officials would hesitate to exercise

Morton, Ina, David, Mark, and Gary Halperin to intervene and for other relief. On June 10, 1980, prior to the Court's action on the petition for certiorari, counsel to the parties had advised the Court that their clients had reached an agreement to liquidate damages, but that there remained a live controversy. Counsel did not include a copy of the agreement in their initial submission.